

¶ 22.) She states that the Church's responses to discovery appeared to confirm that Tshibanda was a member of the clergy and an agent of the Church. (*Ibid.*)

Therefore, plaintiff has believed from the outset of the case that Tshibanda was the Church's agent and a clergy member. If she believed that he was an agent of the Church, then she had all the facts she needed to bring a claim for fraud against the Church and Stoll arising out of Tshibanda' s allegedly fraudulent acts since 2018. Since she failed to file her fraud claims until more than three years after she obtained all the facts she needed to bring her claims, her claims are now time-barred.

Plaintiff seems to be arguing that she did not have sufficient facts to bring a fraud claim against the Church or Stoll until she learned that Tshibanda was not the Church's actual agent, and that he was instead only the Church's ostensible agent. Yet, regardless of whether Tshibanda was an actual agent or an ostensible agent of the Church, the Church could still potentially be liable for his allegedly fraudulent conduct.

“[A] person is liable for the torts committed by her agent within the scope of the agency. There are two types of agency—actual and ostensible. Actual agency is based on *consent*, and turns on whether the principal has the right to control the agent's conduct. [¶] Ostensible agency is based on *appearances*, and turns on whether the ‘the principal intentionally, or by want of ordinary care, causes a third person to believe another to be his agent’ even though the third person is not *actually* an agent.” (*Pereda v. Atos Jiu Jitsu LLC* (2022) 85 Cal.App.5th 759, 768, citations omitted, italics in original.)

Thus, regardless of whether the agency is actual or ostensible, the principal is still equally liable. As a result, it does not matter for the purpose of the accrual of the statute of limitations when plaintiff learned that Tshibanda was the Church's ostensible agent, as opposed to its actual agent. The key issue is when plaintiff knew or suspected the facts that underlie her fraud claims, including when plaintiff knew or suspected that Tshibanda was acting as the Church's agent, whether actual or ostensible. Here, plaintiff admits that she had all of the basic facts regarding her fraud claims in 2018, and that she always believed that Tshibanda was acting as the Church's agent. However, she did not file her complaint against the Church and Stoll until January 30, 2023, more than three years after her fraud claim accrued. Therefore, her proposed fraud claims are time-barred.

Because plaintiff's new fraud claims are time-barred, it would be futile to grant leave to amend, as there is no way for plaintiff to allege a valid cause of action for fraud. As a result, the court intends to deny the motion for leave to file a third amended complaint against the Church and Stoll.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/04/26
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: **A.M. v. Fresno Unified School District**
Superior Court Case No. 22CECG02656

Hearing Date: August 6, 2026 (Dept. 501)

Motion: Motion to Enforce Settlement

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

If oral argument is timely requested, it will be entertained on Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/04/26
(Judge's initials) (Date)